



RENTAL AGREEMENT

Hertz

We're here to get you there.

for Safety, affordability & Convenience

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hertzkenya@executiverentalsltd.com

VAT: 0151893Z

PIN : P0511762761

Customer Name		Rented at		No.			
Renter's Name:		Vehicle Reg.		CHECK IN			
Contact Address:				Location		Date	
Tel:						Time	
Email:		Model		CHECK OUT			
Place / Business Address:				Location		Date	
						Time	
Driving Licence Number:		Date of Issue:		Licensed Carrying capacity of Vehicle (Two children under 12 years equivalent to one adult)		RA opened by:	
Issued by:		Expiry Date:				Due Date:	
Place of Birth:		Date of Birth:					
Passport Number:		Country of Issue:		RA closed by:			
Date of Issue:							
Additional Driver:		Date of Birth:		KMS IN		Per day	
Driving Licence Number:		Date of Issue:		KMS OUT		Per Week	
Issued by:		Expiry Date:		KMS DRIVEN		Per Month	
				KMS ALLOWED IF ANY		Extra Day	
SALOON/RAV 4 CARS NOT PERMITTED TO BE DRIVEN OFF ROAD UNSURFACED ROADS OR GAME PARKS SURCHARGE OF USD 1000 WILL BE LEVIED.				KMS CHARGED		Per Km	
EXPRESSWAY AND PARKING CHARGES WILL BE CHARGED AT THE END OF THE RENTAL REPAIR CHARGES FROM ROADSIDE MECHANICS WILL NOT BE REFUNDED.				TARIFF		No. of Days	
PLEASE READ DETAILS ON THE BACK OF THE AGREEMENT RELATING TO CDW/TP.				WLK		CDW	
TYRES AND TUBES ARE NOTE COVERED BY INSURANCE.						TP	
Renter's Signature				You will be held liable for any and all damage or loss and /or recovery of said vehicle, should the vehicle be deemed to have been used on an unsuitable road.		Fuel	
				The waivers do not cover damage caused while the vehicle is being driven on an untarred road or a road that is unsuitable for the vehicle type.		Driver's Allowance	
Vehicle Exchange - Date		Vehicle No.		Model		Sub-total	
						16% VAT	
						Total	
						Discount	
						Net Amount To Pay	
						US \$	
Car Exchange: Continued From R.A.		Continued on R.A.		ADDITIONAL CHARGES FOR THE NEXT CATEGORY OF SUV, GROUP (EO) WILL APPLY OVER AND ABOVE THE COST OF DAMAGES INCURRED ON THE SALOON CAR/RAV 4 TAKEN OFF ROAD.			
Supervisor		RA Closed and Computed by:		Manager:			
PIN No.		VAT:		FUEL			
ACCEPT		DECLINE		Out		F	
☐		☐		In		E	
				Credit Card No.		Expiry Date	
				Type of Credit Card		Approval Code	
				Contact Name:		Approval Code by	
ACCEPT		DECLINE		I the undersigned warrant the above particulars are true. I am renting the above vehicle in good condition and am liable to pay for any damage caused to this car. I fully understand that I am the only person authorised to drive this vehicle (unless otherwise specified above) and I undertake to return to this vehicle by not later than the date stated above. This rental is subject to the Company's term and conditions as set out on the reverse of the customer copy of this agreement with conditions. I have read and agreed by my signature to accept as the conditions of this agreement with the company. Interest will be 3% per month on charge remaining unpaid after 30 days.			
☐		☐					
				FINAL CHARGES SUBJECT TO AUDIT			
				For		Renter's Signature	
				Date		Additional Driver's Signature	

RENTAL AGREEMENT - TERMS & CONDITIONS

Executive Rental Limited a limited liability company incorporated in the Republic of Kenya (hereinafter called "the Company" which expression shall where the context admits include its successors and assigns) hereby agrees to let on hire to the person whose name appears overleaf (hereinafter called "the Renter") the motor vehicle described overleaf (which together with all tyres, tools, spares and accessories carried with it is hereinafter called "the Vehicle" subject to the terms and conditions contained overleaf and hereunder.

1. DELIVERY AND RETURN

The Renter acknowledges that the Vehicle is in good overall condition and without apparent defects and that the Renter will return it to the Company together with all documents relating thereto in the same condition as when received to the place and during normal business hours on the date specified overleaf or to such place and such other time as the Company may direct.

2. CONDITIONS OF USE

The Renter covenants and agrees that the Renter shall not during the period of hire do or attempt to do or permit to be done in relation to the Vehicle any of the following acts:

- (a) Permit the Vehicle to be driven
- (i) by any person other than the Renter or another person designated by the Renter and approved of in writing by the Company in the space provided overleaf.
- (ii) by any person not in possession of a valid driving license recognized in the Republic of Kenya.
- (iii) by any person while such person is under the influence of alcohol, hallucinatory drug, narcotics, barbiturates or any other substance impairing the driver's consciousness or ability to react:
- (b) Permit the Vehicle to be used:
- (i) for the transportation of persons or goods for hire or reward:
- (ii) in any rally speed test or contest:
- (iii) for propelling or towing any vehicle, trailer or other object:
- (iv) in contravention of any traffic regulations:
- (v) on roads which are not all weather roads in Kenya.
- (c) Sell pledge charge or otherwise part with the possession of the Vehicle otherwise than to the Company or do or permit to be done any act which may prejudice or endanger the title of the Company to the Vehicle:
- (d) Make or cause or permit to be done any repair adjustment or alteration to the Vehicle on any part thereof without the consent in writing of the Company.

3. COLLISION DAMAGE WAIVER (CDW) NOT INSURANCE THEFT PROTECTION WAIVER (TPW) NOT INSURANCE

CDW, TPW are included in the daily rate. In all cases the customers liability is US\$. Tyres and tubes not included.

4. CHARGES

The Renter hereby agrees to pay or reimburse to the Company on demand the following sums.

- (a) the charges set out overleaf or if so let out the charges printed in the Company's current Tariff for the Vehicle in question at the beginning of the rental and it is hereby expressly agreed that the distance traveled shall be conclusively determined by the reading of the standard distance recording device fitted to the Vehicle;
- (b) any charges for refueling, and any other standard or miscellaneous charges at the rates shown in this agreement or in the Company's current Tariff
- (c) any taxes on the rental or the amount charged by the Company as reimbursement for them:
- (d) any fines, penalties, legal costs and fees and other expenses incurred in collecting payments due from the renter under this Agreement or imposed on the Company by law arising from the use of the Vehicle while on rental to their renter incurred in collecting payments due from the renter under this Agreement or imposed on the Company by law arising from the use of the Vehicle on rental to their renter.

- (e) Interest at 3% per month on charges remaining unpaid after 30 days from date of invoice

5. DAMAGES OF THE VEHICLE

- (a) Regardless of fault the Renter is responsible for loss of damage to the car resulting from any cause other than accident fire or acts of nature (for example: collision, rollover theft or vandalism). If the car is used or as permitted by this agreement, this responsibility is limited to the value of the car at the time it is lost or damaged, less its salvage value, appraisal fees or recovery cost.
- (i) the international loss or damage to the car by the Renter or by the additional driver,
- (b) where loss or damage to the Vehicle occurs while the Vehicle is being used, operated or driven or in control of any person in breach of any of the terms of this Agreement or of any laws or regulations for the time being in force in the Republic of Kenya the Renter shall pay to the Company arising from the said loss or damage together with all incidental costs and expenses.
- (c) The liability of the Renter shall not be reduced nor cease by reason of any indemnity to which the Renter may be entitled from any third party.

6. ACCIDENTS

In the event of an accident occurrence which might be prejudice to the Company taking place the Renter hereby undertakes:

- (a) not to admit liability for such accident;
- (b) to report such accident to the police and to the Company not later than Twenty four (24) hours from the time of the accident or occurrence taking place.
- (c) to complete an accurate accident report at the Company and to provide full details of the identities of other parties involved in the accident, witnesses and Police Officers.

7. INSURANCE

- (a) the Company shall insure the Vehicle to comply with the laws of the Republic of Kenya relating to compulsory insurance of motor vehicle and shall if required make a copy of the said policy available to the Renter for inspection PROVIDED ALWAYS THAT the said cover shall not extend to the property of the Renter.
- (b) In the event of any sum becoming irrecoverable under the said policy in whole or in part in consequence of any act or default of the Renter the Renter, shall pay to the Company all damage suffered by reason of the Company being unable to recover the loss or damage suffered by it.

8. INDEMNITY

The company shall not be responsible for any damage suffered by the Renter or by third parties arising in connection with the operation of the Vehicle or loss or damage to the Renter's property left in the Vehicle or for loss or inconvenience resulting from delays in delivery breakdown or other causes beyond the control of the Company.

9. LIABILITY FOR FINE, PENALTIES & FORFEITURES

Without prejudice to the above provisions the Renter shall be solely liable and responsible for all fines penalties and forfeiture imposed by reason any breach by the Renter or any other person in control of the Vehicle of any law, by law or other regulation of any competent authority and Renter shall on completion of the rental hand over to the Company all demands, summons, processes and notifications in connection with or arising out of the commission of any offence in relation the use of the Vehicle and notifications of any penalties and charges incurred by the Renter during the period of hire.

10. VARIATION OF TERMS

No waiver or variation of the terms hereof shall be binding on the Company unless authorised in writing and signed by a Director of the Company.

11. DISPUTES

It is understood and agreed that any disputes or claims arising under this Agreement shall be subject to the sole jurisdiction of the courts of Kenya

12. TELEMATICS

We may use vehicle data systems to collect data about the vehicle's position, condition and performance during your rental agreement. This may include but is not limited to:

- (i) Data in relation to the vehicles condition and performance during the rental period;
- (ii) Tracking of the location of the vehicle for the duration of the rental period. The access of this information is for the purpose of ensuring the driver does not breach the rental agreement.

☐ I have read and understood the terms and conditions and the privacy policy.

Renters Signature _____ Additional Driver signature _____

